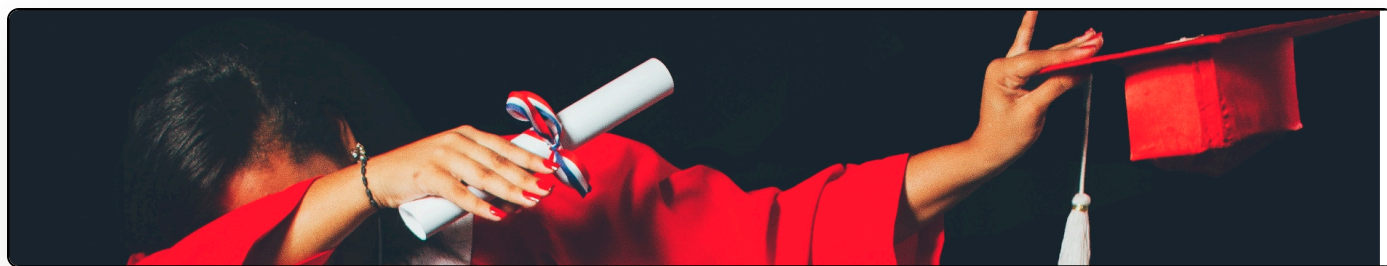


While the government introduces new freedom of speech rules at universities, the biggest threat to academic freedom remains their insistence on the financial destabilization of institutions

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This morning I have been looking at the UK government's so-called "[Higher Education \(Freedom of Speech\) Bill](#)". The politics of this are extremely complicated, but suffice it to say that when the Minister for HE ends up having to say that [the legislation will help get Holocaust deniers onto campus](#), it doesn't exactly look great.

As [I have noted before](#), academic freedom is actually very hard to define and varies between jurisdictions. In the UK, the 1988 Education Reform Act is the most explicit that the commissioners should work "to ensure that academic staff have freedom within the law to question and test received wisdom, and to put forward new ideas and controversial or unpopular opinions, without placing themselves in jeopardy of losing their jobs or privileges they may have at their institutions".

Expertise, or who is an expert?

The new act encodes various forms of academic freedom explicitly in UK law. However, it does so in a more limited way than previous definitions. In the new bill:

“academic freedom”, in relation to academic staff at a registered higher education provider, means their freedom within the law and within their field of expertise—

(a) to question and test received wisdom, and

(b) to put forward new ideas and controversial or unpopular opinions,

without placing themselves at risk of being adversely affected in any of the ways described in subsection (7).

The most salient feature here is the introduction of the clause “within their field of expertise”. Traditionally, academics have been able to speak out, say, against their management and to use the cover of academic freedom to do so. This immanent critique is quite a powerful mechanism of governance and accountability. However, the new bill would not allow such speech under academic freedom. It could also lead to difficulties over defining expertise. Interdisciplinary work in the humanities and social sciences can often mean incursions into political territories, philosophical discourses, and others outside the “core expertise” of an academic. Let us say that an academic wishes to challenge something in a field next to theirs – say, a new reading of a philosopher on which they haven’t worked before. Are they an “expert” in this subject area already? Wouldn’t the challenge, if successful, make them an expert? What about Ph.D. students who haven’t yet published? Are they “experts” yet, or not covered by academic freedom? This situation seems problematic.

Soft power is the greater threat to academic freedom

However, I think there is a greater threat to academic freedom in the UK at the moment that goes (unsurprisingly) unaddressed in the Higher Education (Freedom of Speech) Bill. This threat is the ongoing deliberate financial destabilization of UK universities in the service of marketisation.

The University and College Union (UCU) in the UK this week launched [a global boycott \(greylisting\)](#) of the University of Leicester. At Leicester, the field of “critical management studies” that has been signalled for redundancy – the ONLY field, under the above definitions of academic freedom, that might be able to speak out against senior management.

Further, the University of Leicester, in [its response to UCU's boycott](#), said: “Every institution has the autonomy to decide which areas of research activity it will invest in and support”. That is, the University here decided that it had a *freedom*, an *autonomy* to disinvest from research areas.

However, this means that the freedom accorded to those academics was withdrawn, as they lose their livelihoods. Certainly, these academics have been placed “at risk of being adversely affected” by the university choosing to cut them. Would the new law protect such academics? I am not clear what the current legislation does to protect against this.

The financial pressure on institutions of higher education in the UK is building and building. This will mean that academics will be at risk of losing their jobs. It's all part of the government's marketisation agenda: they have long actively professed that they want some universities to go under (“market exit”). This financial pressure comes with a loss of academic freedom; a circle that you cannot square.